

HOUSE No. 4387

The Commonwealth of Massachusetts

PRESENTED BY:

Leigh Davis and Paul W. Mark

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Monterey to continue the employment of police officer Jennifer O. Brown.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Leigh Davis</i>	<i>3rd Berkshire</i>	<i>6/17/2025</i>

HOUSE No. 4387

By Representative Davis of Great Barrington and Senator Mark, a joint petition (accompanied by bill, House, No. 4387) of Leigh Davis (by vote of the town) that the town of Monterey be authorized to continue the employment of police officer Jennifer O. Brown, notwithstanding the maximum age requirement. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Monterey to continue the employment of police officer Jennifer O. Brown.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 1. Notwithstanding the provisions of any general or special law to the contrary,
2 Jennifer O. Brown, a patrol officer in the police department of the town of Monterey, may
3 continue in such office or position until she reaches age 70; provided, however, that she is
4 mentally and physically capable of performing the duties of her office or position; and provided,
5 further, that she shall hold said office subject to the approval of or removal by the appointing
6 authority. The appointing authority may, at its own expense, require said Jennifer O. Brown to be
7 examined by the retirement board of the Berkshire County Retirement System to determine her
8 capability for continued service. Deductions shall continue to be made from the regular
9 compensation of said Jennifer O. Brown under the provisions of chapter 32 of the General Laws
10 for any service performed between age 65 and 70, and upon retirement said Jennifer O. Brown
11 shall receive a superannuation allowance, or a veteran's pension allowance, as applicable, equal

12 to that appropriate for her full years of creditable service, including any such actual service
13 between age 65 and 70. Should said Jennifer O. Brown be determined to be not capable of
14 continuing in service pursuant to an examination by an impartial physician as provided for in this
15 act, she shall be retired for superannuation, and shall not be presumed by virtue of such
16 determination to be disabled for the purposes of said chapter 32.

17 Section 2. This act shall take effect upon its passage.